

MEMORANDUM TO THE FILE

Subj: USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

IDENTIFICATION OF SOURCE:

Vendor Name: WL Gore & Associates, Inc.

Vendor City/State: Newark, DE

Cage: 17217

Total Dollar Value: [REDACTED]

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).

2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, and the required delivery date/period of performance.

LIN 0001, Qty 16, PN: DDA0210-120, 105 OHM QUAD Cable, [REDACTED]
CLIN 0002, Shipping Cost [REDACTED]
Total [REDACTED]

These cables are low level components used to support the build to TDU Extension Cables and Turret Extension Cables. TDU Extension cables are used to support the troubleshooting and testing of Turret Deployment Units. The usage of TDU Extension Cables allows operation of TDU without requiring installation in aircraft. The lead time for this item is [REDACTED]

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select applicable area below to open specific form)

- ☐ A. ONLY ONE RESPONSIBLE SOURCE
- ☒ B. BRAND NAME
- ☐ C. UNUSUAL AND COMPELLING URGENCY

A. ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

2. EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

3. OTHER REASONS. Other reason not identified above. Provide details on mission impact if requirement is not solicited from only one source.

B. BRAND NAME. Item required must be a brand name product, or feature of a product, particular to one manufacturer.

The WL Gore & Associates, Inc. cable, part number DDA0210-120, has been tested, qualified and approved by L3 Harris WESCAM for the TAS Program and is the only item qualified in the current TAS design. The DDA0210-120 Coaxial Gore Cable Assembly is a lower level component of a major cable assembly. The DDAA0210-120 meets the specification necessary to transport video signals and supports the build of a cable meeting MIL-STD requirements. Deviating from this brand would result in an unapproved configuration of the highest level assembly. Material must be brand name to comply with the drawing.

The Government does not own a Technical Data Package (TDP) nor does it have sufficient rights in any data related to its development to allow for competition. Award to any other brand would therefore result in substantial duplication of costs that are not expected to be recovered through competition and in unacceptable delays in fulfilling the agency's requirements. Incorporating any other converter other than the WL Gore & Associates, Inc's cable is not practicable.

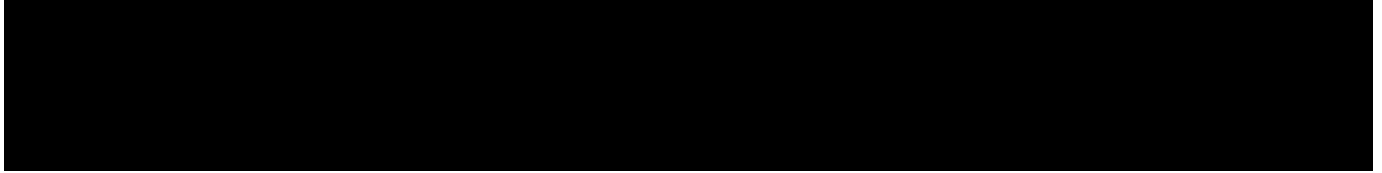
Based on current engineering estimates, the delay necessitated by reverse engineering of the WL Gore & Associates, Inc's cable and developing specifications, soliciting competitive offers and awarding to an alternate source, development, production, system integration and operational test verification would be a minimum of 16 months. This delay would seriously jeopardize the ability of program managers to field the TAS systems, and sustain their use by end users in theater. The development and sustainment of another source would result in excessive duplication of costs to the Government, and these costs would not be recouped through competition. Integration and test costs alone are estimated at a minimum of [REDACTED]. The independent estimated value of this buy, compared to the estimated integration and test costs, makes it impracticable to pursue competition now or during the course of performance due to significant costs associated with the integration and test.

C. UNUSUAL AND COMPELLING URGENCY. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits, bids, or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance
3. Explanation of why delivery/commencement of services by the date mentioned above is required:
4. If appropriate, include any additional pertinent information.

IV. CERTIFICATION/APPROVALS:

A. Technical / Requirements Certifications: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.



B. Certification / Approval

Upon the basis of the above statements and information justification, I hereby approve, as the Contracting Officer, the solicitation of the proposed procurement(s) using other than full and open competition.

